

Correction sheet - style

Continuous text

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Paragraphs and blank lines in between

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Structure levels (A., I., 1., a.), aa), ...)

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Law cited correctly (e.g. § 433 I 1 BGB)

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Answer corresponds to case question

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IRAC scheme

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Other remarks

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e.g. readability, spelling

Solution

Introduction Sentence

- Formulated as hypothesis (example: *W might have used effective standard business terms according to §§ 305 et seqq. BGB.*)

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- Relevant provisions mentioned and cited correctly (§§ 305 et seqq. BGB)

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Existence of Standard Business Terms

- Hypothesis (example: *This requires the existence of standard business terms.*)

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- Requirements: Definition presented (*Standard business terms are all contract terms pre-formulated for more than two contracts which one party to the contract (the user) presents to the other party upon the entering into of the contract (§ 305 I 1 BGB)*)

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- Application to case facts – testing of requirements with reference to the case facts for every requirement:

- contract term

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- pre-formulated

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- for more than two contracts

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- presented

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- Interim Result

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Incorporation of Standard Business Terms into the Contract

- Hypothesis (example: *Besides, the standard business terms must have been incorporated in the contract.*)
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- Requirements (Reference (§ 305 II No. 1 BGB), Opportunity to take notice in an acceptable manner (§ 305 II No. 2 BGB), Agreement to term (§ 305 II BGB), No preceding individual agreement (§ 305b BGB), No surprising clause (§ 305c I BGB))
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- Application to case facts – testing with reference to the case facts for every requirement:
 - Reference (§ 305 II No. 1 BGB),
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 - Opportunity to take notice in an acceptable manner (§ 305 II No. 1 BGB),
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 - Agreement to term (§ 305 II BGB),
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 - No preceding individual agreement (§ 305b BGB),
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 - No surprising clause (§ 305c I BGB)
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- Interim Result
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Passing the Content Control

- Hypothesis (example: *The incorporated standard business terms must pass the content control according to §§ 307 et seqq. BGB.*)
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- Requirements (Opening of content control (§ 307 III BGB), Passing of content control acc. §§ 309, 308 and 307 II, I BGB)
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- Application to case facts – testing with reference to the case facts for every requirement
 - Opening of content control (§ 307 III BGB),
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 - Passing of content control acc. § 309 BGB,

- To be mentioned: clauses without valuation possibility,
 Exclusion for injury to life, body or health (No. 7a),
 exclusion for gross fault (No. 7b)
- Interim result

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- Passing of content control acc. § 308 BGB,
 - To be mentioned: clauses without valuation possibility
 - Interim result

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- Passing of content control acc. § 307 II BGB
 - Test of reasonableness – argumentation
 - Interim result

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- Interim Result

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Result Sentence

- *W has used effective standard business terms according to §§ 305 et seqq. BGB.*
- Relevant provisions mentioned and cited correctly (§§ 305 et seqq. BGB)

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Overall result

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